



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

57th Legislature, 2nd Regular Session

Majority Research Staff

HCR2056: medical mandates; right to refuse

KUPPER FLOOR AMENDMENT

1. Incorporates the HHS Committee amendment.
2. Prohibits government entities from mandating, requiring, coercing, or compelling an individual to administer accept or receive a medical product or treatment as a condition of employment, education, access to any facilities, participation in services, or the exercise of any right or benefit.

KUPPER SUBSTITUTE FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.C.R. 2056

I move the following SUBSTITUTE amendment to the HEALTH & HUMAN SERVICES Committee Amendment to
HOUSE CONCURRENT RESOLUTION 2056 (Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.
[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
<<Green strikeout in carets>> indicates a section removed from the bill.

1 The resolution as proposed to be amended is reprinted as follows:
2 1. Article II, Constitution of Arizona, is proposed to be amended
3 by adding section 38 as follows if approved by the voters and on
4 proclamation of the Governor:
5 38. Right to refuse medical mandate, product or
6 treatment: definition
7 SECTION 38. A. THE RIGHT TO REFUSE MEDICAL MANDATES IS
8 HEREBY RECOGNIZED AND PROTECTED AS A FUNDAMENTAL AND INHERENT
9 RIGHT OF EVERY INDIVIDUAL. A GOVERNMENT ENTITY MAY NOT
10 MANDATE, REQUIRE, COERCE OR COMPEL ANY INDIVIDUAL TO ACCEPT,
11 RECEIVE OR ADMINISTER ANY MEDICAL PRODUCT OR TREATMENT THAT
12 INVOLVES INVASION OF OR AFFIXING ANY ITEM OR ARTICLE TO THE
13 BODY FOR ANY REASON OR PURPOSE, INCLUDING AS A CONDITION OF
14 EMPLOYMENT, EDUCATION, ENTRY OR ACCESS TO ANY [PUBLIC]
15 FACILITY OR SPACE, PARTICIPATION IN SERVICES OR THE EXERCISE
16 OF ANY RIGHT, PRIVILEGE OR BENEFIT.
17 B. THIS SECTION DOES NOT:
18 1. LIMIT A COURT OF COMPETENT JURISDICTION IN A
19 SPECIFIC INDIVIDUAL'S CASE BASED ON A FINDING OF CLEAR AND
20 CONVINCING EVIDENCE THAT THE INDIVIDUAL IS A DANGER TO SELF OR
21 OTHERS, INCLUDING THE ORDERING OF TREATMENT FOR A MENTAL
22 HEALTH OR SUBSTANCE USE DISORDER INVOLVING THE ADMINISTRATION
23 OF MEDICATIONS OR OTHER TREATMENTS TO ADDRESS MENTAL HEALTH OR
24 A SUBSTANCE USE DISORDER.
25 2. APPLY TO PERSONS WHO ARE IN THE CUSTODY OF A LAW
26 ENFORCEMENT AGENCY OR ON PROBATION FOR AN OFFENSE OR LIMIT OR

1 INTERFERE WITH THE COLLECTION OF EVIDENCE PURSUANT TO A BONA
2 FIDE CRIMINAL INVESTIGATION.
3 3. LIMIT OR INTERFERE WITH THE RIGHTS OF PARENTS OR
4 LEGAL GUARDIANS TO MAKE MEDICAL MANDATE DECISIONS FOR THEIR
5 MINOR CHILDREN FROM BIRTH TO EIGHTEEN YEARS OF AGE.
6 4. LIMIT A LICENSED HEALTH CARE PROVIDER OR HEALTH CARE
7 INSTITUTION FROM PERFORMING LEGALLY REQUIRED DUTIES RELATED TO
8 THE REPORTING OR TRACKING OF MEDICAL PRODUCTS OR TREATMENTS OR
9 FROM ADMINISTERING MEDICAL CARE THAT IS NECESSARY TO SAVE THE
10 LIFE OF AN INDIVIDUAL WHEN CONSENT CANNOT BE OBTAINED FROM THE
11 INDIVIDUAL, THE INDIVIDUAL'S PARENT OR LEGAL GUARDIAN OR THE
12 INDIVIDUAL'S AUTHORIZED REPRESENTATIVE.
13 5. LIMIT ANY REQUIREMENT UNDER FEDERAL LAW.
14 6. LIMIT ANY EXISTING STATE LAW REQUIREMENTS FOR
15 DIAGNOSTIC TESTS OR PROCEDURES.
16 7. LIMIT A SPECIAL HEALTH CARE DISTRICT ESTABLISHED BY
17 STATE LAW FROM REQUIRING ITS EMPLOYEES, CONTRACTORS OR AGENTS
18 TO COMPLY WITH HEALTH AND SAFETY PROTOCOLS NECESSARY FOR
19 PATIENT PROTECTION OR DISEASE PREVENTION, INCLUDING PERSONAL
20 PROTECTIVE EQUIPMENT SUCH AS MASKS.]
21 C. FOR THE PURPOSES OF THIS SECTION, "COERCE OR COMPEL"
22 MEANS TO TAKE ANY ACTION THAT IMPOSES A PENALTY, DENIAL OF
23 BENEFIT OR ADVERSE CONSEQUENCE FOR NONCOMPLIANCE.
24 2. The Secretary of State shall submit this proposition to the
25 voters at the next general election as provided by article XXI,
26 Constitution of Arizona.

27 Enroll and engross to conform
28 Amend title to conform

NICK KUPPER

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